

Calendar Line 1

Case Name: *Anna Mungaray Revocable Trust dated January 21, 2022*

Case No.: 23PR196178

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

After significant litigation in dockets 23PR196178 and 23CV409626,¹ the beneficiaries of the Anna Mungaray Revocable Trust, dated January 21, 2022 entered into a settlement agreement. On September 19, 2025, the court issued a written order approving the settlement agreement and reserving jurisdiction pursuant to Code of Civil Procedure section 664.6.

Currently before the court is a motion by Yvonne Drew (“Drew”), one of the beneficiaries, seeking to enforce one of the terms of the settlement agreement, namely, that Art Mungaray, Jr. (“Trustee”), current trustee of the trust, will dismiss his petition for orders confirming trust assets filed December 5, 2023. The motion is unopposed.

DISCUSSION

At the outset, the court notes that Drew has not filed a proof of service evidencing that she served the motion on the other parties to the settlement agreement. While she has attached a proof of service to the proposed order, that proof of service only reflects service of the proposed order itself. Code of Civil Procedure section 1005, subdivision (b) requires that the motion and all documents supporting the motion be served 16 court days before the hearing. Rules of Court 3.1300(c) requires that a proof of service be filed with the court five court days before the hearing. Because Drew has not provided a proof of service evidencing that she served the motion and all supporting documents, the court cannot determine if Trustee has been properly served.

Additionally, Drew has not filed a memorandum of points and authorities in support of her motion. A party filing a motion is required to file a memorandum containing “a statement

¹ These dockets were consolidated on May 6, 2025.

of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Court, rule 3.1113(a)&(b).) Accordingly, the motion is procedurally deficient.

Although Drew is proceeding in pro per, pro per litigants are held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, her pro per status does not excuse failure to comply with all applicable procedural rules. The motion must be, and is, DENIED WITHOUT PREJUDICE.

CONCLUSION

The motion is DENIED WITHOUT PREJUDICE.

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Calendar Line 2

Case Name: *Estate of Fred Townsend*

Case No.: 24PR198523

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the Court finds and orders as follows:

INTRODUCTION

Jeanne Elizabeth Downey (“Respondent”) initiated this case by filing a petition to for letters of administration seeking to be named administrator of the estate of Fred Townsend (“Decedent”), whom she asserted was her spouse. Letters of administration issued on February 3, 2025. On August 5, 2025, Alicia King (“Petitioner”), also claiming to be the spouse of Decedent, filed a petition to determine heirship. Petitioner passed away on August 12, 2025. On September 25, 2025, Respondent filed an answer to the petition to determine heirship and on January 21, 2026, Respondent filed an objection to the petition to determine heirship.

Currently before the court is a motion by the personal representative of Petitioner’s estate, Joseph King, III (“Movant”) seeking to substitute in a petitioner for the purposes of the petition to determine heirship and to file an amended petition reflecting the substitution. Respondent filed a late limited opposition arguing only that her defenses and challenges to the identity of the person who filed the petition survive despite the substitution.¹

¹ An opposition to a motion must be filed nine court days prior to the hearing on the motion. Here, the opposition was filed on May 19, 2026, fewer than nine court days before the hearing, which is scheduled for May 27, 2026. Nonetheless, the court has discretion to consider a late-filed paper and it will do so here. (Cal. Rules Ct., rule 3.1300(d); *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)